

26IWUD01124 26IWUD01124

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-17

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The court sustains the demurrer with leave to amend.

The Defendant argues the complaint is defective for five reasons. First, the Defendant argues the complaint is not verified, but it is. Second, the Defendant argues the complaint is vague and ambiguous, but she states no basis for this conclusory argument. Third, the Defendant argues the three-day notice attached to the complaint fails to identify a specific payment method, but it does.

Fourth, the Defendant argues paragraph 7(a) of the complaint fails to identify why the property is allegedly exempt from the Tenant Protection Act. The Defendant is right about this, and the court grants the Plaintiff leave to amend the complaint to address that shortcoming. Finally, the Defendant argues the notice informing the Defendant the property is exempt from the Tenant Protection Act was not served on the Defendant. That argument cannot be resolved by demurrer, as it relies on facts beyond the face of the complaint of which the court cannot take judicial notice. (See County of Santa Clara v. Superior Court (2023) 14 Cal.5th 1034, 1041.)

The Plaintiff is ordered to file any amended complaint within five days' notice of this ruling. (Code Civ. Proc., § 1167(3).)